

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 27TH DAY OF OCTOBER, 2016

PRESENT

THE HON'BLE MR. SUBHRO KAMAL MUKHERJEE,
CHIEF JUSTICE

AND

THE HON'BLE MR. JUSTICE BUDIHAL R.B.

WRIT APPEAL NO.1165 OF 2016 (LB-ELE)

BETWEEN:

SHRI K DEVADAS
AGED ABOUT 52 YEARS
S/O LATE KAVERAPPA
#40, 4TH MAIN,
N.S. PALYA, BTM 2ND STAGE,
BANGALORE-560 076

... APPELLANT

(BY SRI D.N.NANJUNDA REDDY, SENIOR COUNSEL a/w
SRI L.M.CHIDANANDAYYA, ADVOCATE)

AND:

1. THE STATE ELECTION COMMISSION KARNATAKA
NIRVACHANA NILAYA
SESHADRI ROAD
BANGALORE-560 001
2. THE ELECTION OFFICER/RETURNING OFFICER
WARD NO.176, BRUHAT BANGALORE
MAHANAGARA PALIKE,
BTM SUB DIVISION, LIC COLONY,
BYRASANDRA,
BANGALORE-560 076

3. SRI. H.K. MUTHAPPA
 AGED ABOUT 54 YEARS
 S/O LATE KEMPANNA
 RESIDING AT NO.450,
 6TH MAIN, 7TH CROSS,
 BTM LAYOUT 2ND STAGE,
 BANGALORE-560 076

... RESPONDENTS

(BY SRI K.N.PHANINDRA, ADVOCATE FOR R-1 & R-2;
 SRI Y.R.SADASHIVA REDDY, SENIOR COUNSEL a/w
 SRI B.R.VISHWANATH, ADVOCATE FOR R3)

THIS WRIT APPEAL IS FILED U/S 4 OF THE KARNATAKA HIGH COURT ACT PRAYING TO SET ASIDE THE ORDER PASSED IN THE WRIT PETITION 3336/2016 DATED 13/04/2016.

THIS APPEAL COMING ON FOR PRELIMINARY HEARING THIS DAY, **THE CHIEF JUSTICE** DELIVERED THE FOLLOWING:

JUDGMENT

In connection with municipal election, the appellant, who has been the respondent no.3 in the writ petition, allegedly filed a false affidavit, suppressing certain materials.

2. Nevertheless, the said respondent no.3 in the writ petition was declared elected, whereas the writ petitioner lost the election.

3. A representation is made to the Election Commission, alleging that the successful candidate had suppressed some relevant materials.

4. The Hon'ble Single Judge, by the order impugned, directed the Central Crime Branch, Bengaluru, to register a First Information Report against the successful candidate and also directed to file charge sheet after a thorough investigation, within ninety days from the date of receipt of a copy of the order.

5. We are at one with Mr.D.N.Nanjunda Reddy, learned senior advocate for the appellant, that there could not have been a direction by the Hon'ble Single Judge for filing of charge sheet, that too, by the Central Crime Branch.

6. The remedy of the aggrieved person is to lodge a complaint before the jurisdictional magistrate, invoking Section 125A of The Representation of the People Act, 1951, and the jurisdictional magistrate may consider the

matter after giving an opportunity of hearing to the complainant, in accordance with law.

7. Therefore, the impugned order is set aside. However, liberty is reserved to the writ petitioner, the respondent no.3 in the appeal, to approach the jurisdictional magistrate for ventilating his alleged grievance. We are, however, not expressing any opinion on the merits of the case.

8. The writ appeal is allowed.

9. We make no order as to costs.

**Sd/-
CHIEF JUSTICE**

**Sd/-
JUDGE**